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File No.: EXP202102044

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On July 7, August 23, and September 2, 2021, complaints were filed with the Spanish Agency for Data Protection against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the complained party).

The reasons for the complaints are as follows:

The affected party complains about receiving commercial calls on their mobile line ***TELEFONO.1, registered in the Robinson List.

They provide a screenshot showing the exact date and time of the received calls, as well as the calling lines:

Call received from line ***TELEFONO.2 on 05/02/21 at 13:25 hours.

Call received from line ***TELEFONO.3 on 07/07/21 at 15:53 hours.

Call received from line ***TELEFONO.4 on 20/08/21 at 20:03 hours.

Calls received from line ***TELEFONO.5 on 25/08/21 at 21:09 hours and on 02/09/21 at 21:39 hours.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party/ALIAS, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on September 20, 2021, as stated in the certificate in the file.

On October 19, 2021, a response was received by this Agency indicating, in summary, the following: After conducting the appropriate checks, the complained party has verified that the complainant's telephone line, ***TELEFONO.1, has been listed in the official Robinson list of ADigital and in Vodafone's internal Robinson list since October 23, 2019.

They have checked whether the calling numbers indicated in the information request are listed in their database with the telephone numbers used by their collaborators to make solicitation calls. To this end, they have verified that these numbers do not appear in their database of numbers associated with their collaborators who make solicitation calls on behalf of Vodafone. Therefore, it does not seem possible to relate the receipt of the calls highlighted by the complainant in the complaint.

In any case, they emphasize that, from Vodafone and as a consequence of the volume of complaints received regarding commercial calls to potential customers, and upon verifying that, in many cases, such calls have not been made as part of campaigns directly managed by Vodafone, they have implemented a corrective action plan specifically aimed at collaborators and distributors who carry out customer solicitation campaigns to ensure that they comply scrupulously with the instructions provided by Vodafone when delivering these services.

On November 19, 2018, an official communication was sent to each and every distributor, supplier, and collaborator providing customer solicitation services on behalf of Vodafone, reminding them of their obligations while performing these services. A copy of this communication is attached as Document number 1. Specifically, as can be verified, through it they are informed of the obligation to review all their procedures to ensure compliance with the data protection obligations that correspond to them when carrying out solicitation tasks, which is again provided in the link included in the communication. The complete text accessible from that link is provided as Document number 2. The most relevant aspects of the communication for when collaborators carry out solicitation tasks for Vodafone are highlighted below:

1.- They must use the databases provided by Vodafone for the indicated time and for the specific campaign for which that database has been generated. These databases are filtered with the Robinson lists of both Vodafone and ADigital beforehand by Vodafone and duly updated.

2.- If they use their own databases, (i) obtain prior approval from Vodafone for use, ensuring that they have been obtained lawfully and in compliance with the duty of information and consent required by current regulations (ii) ensure that they are filtered with official Robinson lists.

3.- In both cases (i) provide an easy means for the person receiving the call or commercial communication to express their wish not to continue receiving them (ii) immediately forward that request to Vodafone so that they can include them in their Robinson list.

In the communication, Vodafone informs them of the possibility of ceasing to work with those collaborators who do not comply with these obligations.

THIRD: On October 25, 2021, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

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LEGAL GROUNDS

I

Competence

In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), the provisions established in Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel), and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Data Protection Agency is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Data Protection Agency by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Data Protection Agency must process in exercising the competencies attributed to it by other laws."

II

Right to the protection of personal data and privacy in relation to unsolicited communications, traffic and location data, and subscriber directories

Article 48 of the LGT, under the heading "Right to the protection of personal data and privacy in relation to unsolicited communications, traffic and location data, and subscriber directories," provides in its subsection 1.b) the following:

"1. Regarding the protection of personal data and privacy in relation to unsolicited communications, end users of electronic communications services shall have the following rights:

(...)

b) To object to receiving unwanted calls for commercial communication purposes made through systems other than those established in the previous letter and to be informed of this right."

III

Advertising exclusion systems

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Considering the content of subsection four of Article 23 of the LOPDGDD, "4. Those intending to carry out direct marketing communications must first consult the advertising exclusion systems that may

affect their actions, excluding from processing the data of those affected who have expressed their opposition or refusal to it. For these purposes, to consider the previous obligation fulfilled, it will be sufficient to consult the exclusion systems included in the list published by the competent supervisory authority. It will not be necessary to carry out the consultation referred to in the previous paragraph when the affected party has provided, in accordance with the provisions of this organic law, their consent to receive the communication from the party intending to carry it out."

IV

Conclusion

The facts presented (the violation of the right to object) could imply the commission by the respondent of an infringement of Article 48.1.b) of the LGT, as stated in Title III, which indicates:

"1. Regarding the protection of personal data and privacy in relation to subscriber directories, end users of electronic communications services shall have the following rights:

(...)

b) To object to receiving unwanted calls for commercial communication purposes made through systems other than those established in the previous letter and to be informed of this right."

However, the aforementioned article does not establish such a right, so we must refer to the data protection regulations that govern the right to object: Article 21 of the GDPR (Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and on the Free Movement of such Data) and Article 23 of the LOPDGDD (Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights).

This infringement is classified as "minor," in Article 78.11) of said regulation, which considers as such: "The non-compliance with public service obligations, public obligations, and the violation of the rights of consumers and end users as established in Title III of the Law and its development regulations," and may be sanctioned with a fine of up to €50,000, in accordance with Article 79.d) of the aforementioned LGT.

Article 83.1 of the LGT establishes the prescription of infringements, indicating:

1. The infringements regulated in this Law shall prescribe, very serious ones, in three years; serious ones, in two years; and minor ones, in one year.

In this case, the complainant states that on July 7 and September 2, 2021, they received unsolicited commercial calls on a line of

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mobile phone registered in the name of its owner, despite being listed in the Robinson List since 2019, which would constitute a violation of Article 48.1. b) of the LGT, in relation to Article 21 of the GDPR and Article 23.4 of the LOPDGDD.

Therefore, the possible infringement committed is time-barred. In accordance with the aforementioned, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U., and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative

Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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